



Procedure No.: EXP202100876 (PS/00136/2022)

Appeal No. RR/00233/2023

Examined the appeal for reconsideration filed by the entity AD735 DATA MEDIA ADVERTISING S.L. with CIF: B87781795 (hereinafter, "the appellant"), against the resolution issued by the Director of the Spanish Agency for Data Protection in the procedure PS/00136/2022, for violation of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (GDPR), and in the L.O. 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and based on the following:

FACTS

FIRST: On March 7, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure PS/136/2022, opened against the entity AD735 DATA MEDIA ADVERTISING S.L., which was notified on March 8, 2023, for violation of Article 7.1 GDPR, imposing a fine of 5,000 euros (five thousand euros).

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00136/2022, the following was recorded:

First: According to the complainant in his complaint dated July 2, 2021, he never participated in the draw held through the website of the complained entity (www.premium-sales.es) as he claims he never provided his personal data to said entity for any purpose.

Second: In the document submitted by the complained entity to this Agency on October 3, 2021, it acknowledges that it does not have the necessary technology to certify the identity of the individuals who submit data through the forms enabled on its websites and confirms to the complainant himself that "(...) In cases like yours, and in the face of any evidence or suspicion regarding the veracity and/or ownership of the data received through any of the enabled forms, AD735 DATA MEDIA ADVERTISING, S.L., in guarantee of the rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 of April 27, 2016 (GDPR), proceeds to limit and/or delete all data that constitutes the record (...)"

Third: Once the sanctioning procedure was initiated, the complained entity, in its written allegations to the initiation of the file, presented, along with the written allegations, a Certificate of Registration Table issued by the data controller, with the description of the activity log collected on the website log and actions performed by the associated IP, as declared by the complained entity, to the record of the complainant's phone.

The data presented in the certificate from the DPO of the complained entity, obtained on July 23, 2019, at 16:44 hours, such as the name, surname, and phone number, coincide with the data of the complainant provided in his complaint. Given the age of the use of the IP address for this registration procedure in the draw, information regarding this data could not be verified as it exceeds the obligation to retain it as established in Article 5.1 of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks.

THIRD: On March 11, 2023, a written appeal for reconsideration was received by this Agency, presented by the entity, in which, among other things, the following is alleged:

FIRST.- USER'S COMPLAINT.-

On July 2, 2021, Mr. A.A.A. filed a complaint with this Agency for an alleged violation of data protection regulations: (GDPR and LOPDGDD), alleging the following:

"I have received a response from the complained entity indicating that they obtained my data through the participation form in the draw for a trip for two people published on the website www.premiumsales.es, which is absolutely false."

On June 13, 2022, the initiation of the sanctioning procedure PS/00136/2022 derived from File EXP202100876 was agreed.

On March 8, 2023, a resolution of the sanctioning procedure was issued in which it was resolved to

“IMPOSE on the entity AD735 DATA MEDIA ADVERTISING S.L. for the infringement of Article 7.1 GDPR, a fine of 5,000 euros (five thousand euros).”

SECOND.- ACCREDITATION OF THE CONSENT OBTAINED FROM THE COMPLAINANT.-

It is indicated in the resolution that is now being appealed that “In this case, the responsible party only certifies that someone registered and entered the complainant's data, but does not certify that it was the complainant who registered.” However, in the present sanctioning procedure, this party has accredited the traceability of the consent granted by the affected party, the absence of any evidence of guilt justifying the proposed sanction is confirmed, and thus the violation of the principle of the presumption of innocence that must govern the sanctioning power of the Administration is evident, the violation of the principle of prohibition of arbitrariness of the Administration, and we understand that there has been an erroneous assessment of the evidence presented, as we detail in this appeal. Document one is again submitted, a certificate issued by the data controller showing the registration data and the activity performed by the user with their times and details of the actions taken.

THIRD.- ADMISSION OF THE COMPLAINT.-

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The Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights establishes in its Article 65 the criteria for the admission of complaints received:

“1. When a complaint is submitted to the AEPD, it must evaluate its admissibility for processing, in accordance with the provisions of this article.

2. The AEPD shall reject complaints submitted when they do not concern issues of personal data protection, are manifestly unfounded, are abusive, or do not provide reasonable indications of the existence of an infringement.

3. Likewise, the AEPD may reject the complaint when the data controller or processor, after a warning issued by the AEPD, has adopted corrective measures aimed at ending the possible breach of data protection legislation and any of the following circumstances apply: a) That no harm has been caused to the affected party in the case of the infringements provided for in Article 74 of this organic law. b) That the rights of the affected party are guaranteed through the application of the measures.

4. Before deciding on the admission of the complaint for processing, the AEPD may forward it to the data protection officer designated by the data controller or processor, if applicable, or to the supervisory body established for the application of codes of conduct for the purposes provided for in Articles 37 and 38.2 of this organic law. The Spanish Agency for Data Protection may also forward the complaint to the data controller or processor when no data protection officer has been designated or when they are not adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the complaint within one month.

5. The decision on the admission or rejection of the complaint for processing, as well as the decision that determines, if applicable, the forwarding of the complaint to the main supervisory authority deemed competent, must be notified to the complainant within three months. If this notification does not occur within this period, it will be understood that the processing of the complaint continues in accordance with the provisions of this Title from the date on which three months have elapsed since the complaint was received by the AEPD.”

Analyzing the complaint submitted by the complainant, regarding the infringement of Article 7.1 of the GDPR, in accordance with the provisions of paragraph 2 of the aforementioned article, it is evident that the complaint should not have been admitted for processing and is considered to be unfounded and abusive and does not provide reasonable indications of the existence of an infringement.

We cannot forget that the complainant has only alleged at this point that he did not fill out a form, but in no case has he provided any evidence to substantiate this statement, nor any minimum indication that serves.

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to substantiate the sanction imposed on AD735 DATA MEDIA ADVERTISING, S.L., which leads us to

qualify the imposed sanction as lacking motivation since it is based on a series of unproven assumptions, neither by the claimant nor by the AEPD itself during the evidentiary period developed.

FOURTH.- VIOLATION OF THE PRINCIPLES OF EQUALITY AND PROHIBITION OF ARBITRARINESS BY THE AEPD.-

In the present matter, the imposition of a sanction on AD735 DATA MEDIA ADVERTISING is agreed upon, deviating from the resolution proposal issued by the instructor of the file, as well as from the criteria followed by the sanctioning body in recent previous matters, e.g., File EXP202101732, in which, in its resolution dated August 29, 2022, it was agreed to archive the procedure since, as indicated in its legal grounds:

“In relation to the above, it is considered that although there were initially evidences that the processing of data of the person who allegedly filled out the sweepstakes form and its transfer to third parties, subject of this claim, would have been carried out without a legitimizing cause as provided in Article 6 of the GDPR, the submission of new documentation by the respondent makes such evidences not entirely refuted, if at least they are questioned, which makes it impossible to reach certainty about the commission of the infringement.

The GDPR applies to personal data, which is defined as “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, cultural, or social identity of that person.

BICLAMEDIA provides as evidence of obtaining consent for the processing activities referred to in the claim, new documents (log files and certificate of the registration table), which could imply the confirmation of activities for obtaining consent from individuals accessing the website subject to the claim.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: ARCHIVE the procedure PS/00578/2021, initiated against the entity BICLAMEDIA, S.L., with NIF B87022117.”

On the other hand, it surprises this party that in the present matter a doctrine of the National Court from 2006 and a different criterion is applied than that used in the previous resolution, when the established facts and the activity.

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The evidentiary proceedings developed in both cases show an undeniable similarity.

We understand that this difference in criteria when resolving two similar matters constitutes a clear violation of the constitutional principle enshrined in Article 9.3, which guarantees the prohibition of arbitrariness.

Just as in the PS/00578/2021 procedure, this party submitted, on June 27, 2022, new documents to the present file, consisting of the registration data and the activity performed by the user, along with the times and details of the actions taken. This documentation is similar to that submitted in the PS/00578/2021 procedure, which should be sufficient, if not to prove the consent expressed by the claimant, at least to introduce a reasonable doubt regarding the valid acquisition of the claimant's consent for the processing.

However, in the present procedure, the mere assertion of the claimant regarding the evidentiary activity carried out by the defendant, which certifies the acquisition of consent, prevails. This not only constitutes a violation of the principles of prohibition of arbitrariness and equality to which the AEPD, as a Public Administration, is subject, but also entails a dangerous precedent that jeopardizes the principle of legal certainty to which it is also subject and which must govern administrative procedures

in general and sanctioning procedures in particular.

VIOLATION OF THE PRINCIPLE OF PRESUMPTION OF INNOCENCE.-

It is stated in the contested resolution that "regarding the principle of presumption of innocence mentioned by the defendant, it should be noted that, in the field of data protection, it is nuanced by the concurrence of proactive responsibility, which, in the case subject to this file, necessarily implies the diligent action of the data controller, who must not only obtain prior consent for the processing of data but must also have the essential means to verify and prove that such consent was duly granted."

Well, in the present procedure and as evidenced by the document attached to this appeal, which was already submitted at the time to the file, the diligent and proactive action of the data controller is clearly demonstrated, as the consent of the claimant prior to the processing of their data is clearly evidenced. This documentation is evidently unilateral since it is the defendant who has access to their systems and data registration and management tools. Furthermore, this party is surprised that, without a regulation clarifying what valid evidentiary means exist to prove the consent obtained, the documentation provided is not valued when it is evident from it that the claimant expressed consent. The principle of presumption of innocence is enshrined in Article 24.2 of the Spanish Constitution, which refers to the process but is extendable to the matter.

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Administrative cession. This has been consistently declared by the Constitutional Court (TC), starting from STC 8-3-1985 (SSTC 45/1997; 23/1995; 138/1990; 76/1990).

The presumption of innocence implies that one or more pieces of evidence are necessary, the provision of which is a burden that falls on the Administration, in order to impose a sanction. That is to say, any sanction must be supported by evidentiary activity that demonstrates and proves the reality of the infringement committed by the sanctioned party.

This right to the presumption of innocence is violated when sanctions are imposed without evidence, without taking into account the practices within the procedure, and when the evaluations are made in an arbitrary, irrational, or absurd manner: SSTC 33/1992; 10/1992; 51/1991; 38/1990; etc.

The presumption of innocence entails the right of the appellant to have the non-existence of administrative responsibility presumed until the Administration proves otherwise.

Article 24 of the Spanish Constitution (CE) guarantees that the sanctioning procedure, as indicated by STC 76/1990, is conditioned on the provision of evidence in a contradictory procedure in which parties can defend their own positions.

To this effect, the right to the presumption of innocence implies "that the sanction is based on acts or evidentiary means that are incriminating of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, does not exclude the need to examine whether the subsumption of those facts into the corresponding sanctioning provision has been made in constitutionally admissible terms."

The STC (First Chamber) No. 70/2012 of April 16, 2012 (RTC 2012, 70) establishes that "The application of the aforementioned doctrine determines the dismissal of this complaint, as there is, without a doubt, valid and sufficient evidentiary activity to undermine the presumption of innocence of the appellant entity."

However, that evidentiary value can only refer to the facts directly verified by the official, excluding legal qualifications, value judgments, or mere opinions that inspectors record in the minutes and proceedings (STC 76/1990, of April 26, F. 8), so that, although we reject the complaint regarding the violation of the right to the presumption of innocence (art. 24.2 CE), this does not exclude the need to subsequently examine whether the subsumption of those facts into the corresponding sanctioning provision has been made in constitutionally admissible terms.

We consider that the present sanctioning procedure, based solely on a statement from the affected party in which they assert that they did not complete a form nor participated in a contest, without

providing any rational indication of the existence of an infringement, constitutes a clear violation of the principle of the presumption of innocence recognized in our constitutional text, especially when AD735 DATA MEDIA ADVERTISING, following the doctrine of the Court of Appeal.

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National referenced in the resolution dated January 23, 2023, has demonstrated that it has obtained the consent of the affected party, has preserved evidence of compliance with its obligation, and has accredited this before that Agency through the traceability of the data obtained.

The right to the presumption of innocence in the administrative sphere, which we understand to be violated, entails that the sanction must be based on acts or incriminating evidence of the reproached conduct, something that does not occur in the present sanctioning procedure; - that the burden of proof (onus probandi) corresponds to the accuser, without anyone being obliged to prove their own innocence; and - that any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must result in an acquittal ruling, which should be applied in this case.

Thus, Section 1 of the Administrative Litigation Chamber of the National Court has pointed out in its very recent Judgment dated February 22, 2022 (rec. 26/2020), therefore, much later than the doctrine supporting the resolution we are contesting, that “The lack of provision of rational indications of the existence of an infringement is what has occurred in this case, as derived from the considerations of the challenged resolutions, which reason that the plaintiff bases the alleged violation of data protection regulations on mere statements, without providing evidence that demonstrates that an infringement has been committed. Adding the AEPD that, as applicable to administrative sanctioning law, with some nuances, the principles inspiring criminal law, the full validity of the principle of presumption of innocence is clear, in accordance with the provisions of Article 53.2.b) of the LPACAP.”

On the other hand, in Article 65 of LO 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, which has adapted the Spanish legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, it is established that “The AEPD will inadmit claims presented when they do not concern issues of personal data protection, are manifestly unfounded, are abusive, or do not provide rational indications of the existence of an infringement.”

In relation to this article, Section 1 of the Administrative Litigation Chamber of the National Court, in the same aforementioned judgment, indicates that this provision “contemplates an inadmissibility a limine, that is, ex officio, without analyzing the substance of the possible controversy raised and without the need for any other action, in cases, among others, where the issue raised does not provide rational indications of the existence of an infringement,” as we understand has occurred in this case, where the affected party limits themselves to denying their participation in a draw without providing rational indications of the existence of an infringement by AD735 DATA MEDIA ADVERTISING, even though they provided a certificate of obtaining their personal data, and subsequently the traceability of the data obtained was submitted to the procedure.

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The same Section 1, in its ruling of January 31, 2022 (rec. 2058/2019), indicates that when there is no evidence of any violation of the LOPD, the principle of the presumption of innocence must prevail. Regarding the Principle of Presumption of Innocence, it is enshrined as a fundamental right in Article 24.2 of our Constitutional Text. Configured as a right inherent to the criminal legal system, jurisprudence, by affinity, has extended it to the sanctioning procedure.

The Principle of Presumption of Innocence guarantees that one shall not suffer a sanction in the administrative sanctioning order without prior evidentiary activity. It also guarantees a trial period that results in evidence of guilt, which does not exist in the present procedure. By virtue of this principle, it

is the claimant's responsibility to prove the certainty of the alleged facts, and in no case is the sanctioned party obliged to prove their innocence, as they are protected by the constitutional presumption of innocence.

A mere complaint that initiates a sanctioning procedure is not sufficient if it does not constitute evidence of an infringement.

Regarding the principle of presumption of innocence, our Constitutional Court (TC) has had the opportunity to rule and establish doctrine regarding the evidentiary period, having resolved that [Judgment 76/90 of April 25 (FJ.8º)] "any insufficiency in the results of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal ruling."

INTERFERENCE OF THE SANCTIONING BODY IN THE INSTRUCTING ACTIVITY.-

On November 14, 2022, a proposal for resolution in the present sanctioning procedure is notified to this party, in which the Instructor of the procedure proposes "that the Director of the Spanish Agency for Data Protection proceed to ARCHIVE the present sanctioning procedure against the entity, AD735 DATA MEDIA ADVERTISING S.L. with CIF: B87781795, in accordance with the provisions of Article 63.3 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 7.1 of the GDPR," and this is based, after an adequate assessment of the evidentiary activity carried out, on the fact that: "In the present case, the entity being claimed presents, along with the written allegations to the initiation of the file, the 'Certificate of Registration Table,' with the record of activity collected in the log of the website and the actions carried out through the IP associated with the phone ***PHONE.1, highlighting that the phone number that the claimant indicates as theirs in the complaint coincides with the phone number associated with the IP from which the personal data was sent to register on the website.

In addition to verifying that the information provided to the user at the time of filling out the form on the website in question is correct, there exists, with the information and documentation provided by the entity, evidence...

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there is sufficient evidence to determine that the personal data of the claimant was included in the form on the website of the defendant through the claimant's mobile phone, since, according to the log provided, the IP address from which the personal data was sent is associated with the claimant's phone." The contested sanctioning resolution, in addition to the alleged violation of the defendant's right to the presumption of innocence, results in a manifest state of defenselessness for AD735 DATA MEDIA ADVERTISING, and a serious and inadmissible intrusion by the sanctioning body into the instructive activity since, from the very moment it became aware of the claim, it prejudged the culpability of AD735 DATA MEDIA ADVERTISING by imposing ab initio on the defendant the sanction that it considers applicable, which affects the nullity of the procedure under Article 47.1.a) of Law 39/2015, unjustifiably departing from the evidentiary activity carried out during the instructive phase. We state that there has been a serious and inadmissible intrusion by the sanctioning body into the instructive activity since in the resolution now being contested there is a manifest lack of assessment of the evidentiary activity carried out during the instructive phase by the sanctioning body. In this regard, the First Section of the Contentious Administrative Chamber of the National Court (AN) has had the opportunity to pronounce itself in its very recent Judgment 6460/2022, of December 23, which establishes that "we also pointed out as another determining element of the sanctioning procedure the evaluation of the evidence, which according to the doctrine of both the Constitutional Court and the Supreme Court is closely linked to the principle of the presumption of innocence, and which requires that the condemning judgment be based on true acts of evidence that must comply with the Law and the Constitution, and as we have said, the resolution does not make any specific assessment of the evidence in relation to the aforementioned complaints, but merely collects them in the proven facts, without making a specific assessment of them." In the present procedure, as in the aforementioned one, neither the proven facts have been taken into account nor has the existence of any infringement

by AD735 DATA MEDIA ADVERTISING been demonstrated, and what has been punished is a potential infringement based on a mere allegation by the claimant made out of animosity towards the defendant. Consequently, since the principles of the sanctioning power have not been respected, and considering that according to Recital 129 of the GDPR the powers of the supervisory authorities must be exercised in accordance with adequate procedural guarantees established in Union Law and the laws of the Member States, along with the other statements made in this document, we understand that the present administrative appeal should be upheld.

FOUNDATIONS OF LAW

I.- COMPETENCE

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The appeal is directed to the same body that issued the contested administrative act, as it is competent for its resolution, according to Article 123 of Law 39/2015, of October 1.

II.- LEGITIMACY

My client is legitimized to file this appeal, pursuant to Articles 4 and 13 of Law 39/2015, of October 1, as the holder of legitimate, personal, and direct rights and interests affected by the contested act.

III.- OBJECT OF THE APPEAL

The act against which this appeal is filed is subject to challenge as it brings an end to the administrative route, in accordance with the provisions of Article 114.c) of Law 39/2015, of October 1.

IV.- DEADLINE

Since the act now subject to appeal was notified on March 8, 2023, the one-month period for filing the appeal for reconsideration established by Article 124 of Law 39/2015, of October 1, will expire on the same day of the following month; however, in accordance with Article 30.5 of the same legal text, when the last day of the deadline is non-working, it shall be understood to be extended to the first working day thereafter. Since April 8, 2023, is non-working and this document is submitted on the first working day thereafter, the appeal is filed within the deadline, and therefore there is no lateness.

V.- PROCEDURE

This document of appeal complies with the formalities required by Article 115 of Law 39/2015, of October 1. In any case, an error in the qualification of the appeal cannot be an obstacle to its processing, according to point 2 of that same provision.

In light of the above, I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION to accept this document along with the accompanying document, and in virtue thereof to admit the RECONSIDERATION APPEAL against the Resolution issued in the Sanctioning Procedure PS/00136/2022, to consider it duly filed, in time and form, the procedure conferred, and, in light of the allegations made in this document, to annul said resolution and issue another one declaring the sanctions imposed on AD735 DATA MEDIA ADVERTISING, S.L. for an infringement of Article 7.1 of the GDPR null and void and declaring the present sanctioning procedure against the entity, AD735 DATA MEDIA ADVERTISING S.L., without the imposition of a sanction.

FUNDAMENTALS OF LAW

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Competence.

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic

Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations

The joint assessment of the documentation in the procedure brings to the attention of the AEPD a view of the reported action that has been reflected in the proven facts stated above. However, in response to the allegations presented by the entity being appealed in the appeal for reconsideration, the following should be indicated:

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a).- Regarding the accreditation of the consent obtained from the complainant.

In the log presented by the entity being appealed, it can be verified that the data included in the form on the website www.premium-sales.es, submitted on 07/23/19 at 16:44 hours, from the IP (...), associated with the phone number ***PHONE.1, that is, the first name, last name, and phone number, match the personal data of the complainant provided in their complaint letter, highlighting that the phone number indicated by the complainant as theirs in the complaint letter matches the phone number associated with the IP from which the personal data was sent to register on the website. However, in this case, the responsible party only certifies that someone registered and entered the complainant's data, but does not certify that it was the complainant who registered, and it is on this basis that the resolution of the sanctioning file PS/136/2022 is based, since in these cases, the entity being appealed can establish procedures to verify that the registration is carried out by the data subject, such as, for example, sending an SMS or making a confirmation call, especially when the main purpose of the responsible party's activity is to obtain data for advertising purposes, as was noted in the initiation agreement.

This is due to the fact that the accreditation of the identity of the user entering the data on the sweepstakes website <https://www.premium-sales.es> is not carried out with sufficient guarantees, so that any person with knowledge of the name, surname, and phone number of a citizen, or even using random data, could enter this personal data on the website and these could be transferred by the entity being appealed to other entities for marketing purposes. Furthermore, the entity being appealed, in its email response to the complainant, which is included in the allegations submitted in response to the complaint, states the unavailability of the necessary technology to certify the identity of the individuals submitting the data through the forms enabled on their websites.

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b).- Regarding the admission of the claim presented in the context of the procedure PS/136/2022:

The appellant argues at this point that, "(...) upon analyzing the claim presented by the claimant, in relation to the infringement of Article 7.1. of the GDPR, in accordance with the provisions of paragraph 2 of the aforementioned article, it is evident that the claim should not have been admitted for processing as it is considered to be unfounded and abusive and does not provide rational indications of the existence of an infringement. We cannot forget that the claimant at this point has only alleged that he did not fill out a form, but in no case has he provided any evidence to substantiate this statement, nor any minimum indication that serves to justify the imposed sanction (...)"

In the claim presented that led to the sanctioning file PS/136/2022, the claimant states, among other things: "After exercising my rights of access, opposition, and limitation of processing due to receiving a commercial communication via SMS on my phone from the identifier MASMOVIL without my request or authorization, I submitted a claim to the AEPD for lack of response (...) and I have received a response from the entity being claimed indicating that they obtained my data through the participation form in the draw for a trip for two persons published on the website www.premium-sales.es, which is absolutely false," presenting the necessary documentation to corroborate these claims, such as the

received SMS or the response from the entity being claimed.

On the other hand, the doctrine of the National Court indicates that when the data subject denies consent for the processing of their data, the burden of proof lies with the one who asserts its existence, and the data controller must gather and retain the necessary documentation to prove that consent has been given and that it has been given by the data subject, as stated in the Judgment of the National Court of May 31, 2006 (Rec. 539/2004): "Furthermore, it is the responsibility of the data controller (see, among others, the judgment of this Chamber of October 25, 2002, Rec. 185/2001) to ensure that the person from whom consent is requested actually gives it, and that this person giving consent is indeed the holder of those personal data, and must retain proof of compliance with the obligation available to the Administration, which is responsible for ensuring compliance with the Law.

Therefore, in the present case, the claim presented can be admitted as it dealt with issues of personal data protection, had grounds for it, and provided rational indications of the existence of an infringement.

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c).- Regarding the violation of the principles of equality and prohibition of arbitrariness by the AEPD. At this point, the appellant refers to the sanctioning procedure with reference PS/00578/2021, followed in this Agency against the entity BICLAMEDIA, where it was considered that this entity had processed the personal data of the claimant without any legitimizing basis, subsequently transferring them to third parties, and therefore the file was opened for the alleged infringement of Article 6 of the GDPR, that is, for lack of legitimization in the processing of personal data.

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It should be noted that, during the course of the process of this file, the entity being claimed (BICLAMEDIA) submitted new documents to the file, such as the log files with the registration data and the activity at the time of browsing the website, as well as a certificate of the registration table issued by the person responsible for the personal data file. These documents reflected that through the IP of the claimant, the website of the claimed entity was visited, entering the personal data of the claimant and showing in conditions c1, c2, c3, and c4 the value "1" (which would mean acceptance of the data processing conditions, according to the explanatory note), in the "User Registration Table and IP Activity Log, raising a reasonable doubt about the existence of a valid obtaining of consent from the claimant or a third party for the processing.

However, it must be emphasized that there is a clear difference regarding the present procedure (PS/136/2022), as in this file, what was addressed was whether the entity AD735 DATA MEDIA ADVERTISING S.L. could or could not corroborate that the person who entered the personal data in the form on its website was precisely the claimant or if it was done with their consent.

Well, the entity AD735 DATA MEDIA ADVERTISING S.L. itself acknowledged that it did not have the necessary technical means to corroborate this, precisely in its email response to the claimant, and this was due to the fact that the accreditation of the identity of the user entering the data on the sweepstakes website <https://www.premium-sales.es> is not carried out with sufficient guarantees, so that any person who had knowledge of the name, surname, and phone number of a citizen, or even using random data, could enter personal data of third parties on the website, existing well-known mechanisms that could be used, such as sending a verification code via SMS, a confirmation call, etc., which could corroborate that the data entered in the form is provided by the interested party themselves or with their consent.

Furthermore, the claimed entity stated, in the response it made to the affected party, that, like the rest of the companies in the digital marketing sector and other sectors, it cannot guarantee with absolute certainty that the data received is correct, as sometimes registrations are received indicating false names, aliases, or some incorrectly indicated data, and sometimes, registrations of minors are received that indicate an erroneous date of birth to prove an age of majority that they do not have and thus be able to opt for the promoted prizes, and for this reason, AD735 warns users, in its privacy

policy, of the need to provide accurate and truthful data, in addition to, in the case of supplying data of third parties, having the express consent of these to be able to enter them.

- d) On the violation of the principle of presumption of innocence.

Recital (39) of the GDPR establishes, among other things, the following:

(...) Personal data must be processed in a manner that ensures adequate security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used in the processing.

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For its part, Article 7.1 of the GDPR establishes that:

1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject consented to the processing of their personal data.

Therefore, the principle of the presumption of innocence referred to by the respondent, in the context of data protection, is nuanced by the concurrent principle of proactive responsibility which, in the case at hand, necessarily implies the diligent action of the data controller who must not only obtain prior consent for the processing of the data but must also have the essential means to verify and prove that such consent was duly granted.

The principle of proactive responsibility implies that the data controller must be able to demonstrate the correctness of the processing, and in this case, the documentation provided ceases to be a unilateral declaration from one party that is not accompanied by any verification measures that corroborate that the individual who provided the data is indeed who they claim to be.

For its part, the National Court indicates that when the data subject denies consent for the processing of their data, the burden of proof falls on the one who asserts its existence, and the data controller must gather and retain the necessary documentation to prove that consent has been given and that it has been given by the data subject, as stated in the Judgment of the National Court of May 31, 2006 (Rec. 539/2004):

“On the other hand, it is the data controller (see, among others, the judgment of this Chamber of October 25, 2002, Rec. 185/2001) who must ensure that the person from whom consent is requested actually gives it, and that this person who is giving consent is indeed the holder of those personal data, and must retain proof of compliance with the obligation available to the Administration, which is responsible for ensuring compliance with the Law.”

And on the other hand, as indicated by the Supreme Court (STS 26/10/98), the right to the presumption of innocence:

“does not oppose the judicial conviction in a process being formed on the basis of circumstantial evidence, but for this evidence to undermine said presumption, it must meet the following constitutional requirements: the indications must be fully proven – they cannot be mere suspicions – and it must explicitly state the reasoning by which, based on the proven indications, it has reached the conclusion that the accused committed the infringing conduct, since otherwise, neither the substitution would be grounded in Law nor would there be a way to determine if the deductive process is arbitrary, irrational, or absurd, that is to say, if the right to the presumption of innocence has been violated by considering that the evidentiary activity can be understood as incriminating.”

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Also, the Judgment of the Constitutional Court dated 20/02/1989 indicates that:

“Our doctrine and criminal jurisprudence have maintained that, although both can be considered as

manifestations of a generic favor rei, there is a substantial difference between the right to the presumption of innocence, which unfolds its effectiveness when there is an absolute lack of evidence or when the evidence presented does not meet procedural guarantees, and the jurisprudential principle in dubio pro reo, which pertains to the moment of the evaluation or appreciation of evidence, and which must be judged when that indispensable evidentiary activity occurs, and there is a rational doubt about the actual concurrence of the objective and subjective elements that make up the criminal type in question.”

In short, those principles prevent imputing an administrative infraction when a charge-proving evidence of the facts motivating the accusation or the involvement of the alleged infringer has not been obtained and accredited.

In the present case, in the complaint submitted that led to the sanctioning file PS/136/2022, the complainant states, among other things, the following: “After exercising my rights of access, opposition, and limitation of processing due to receiving a commercial communication via SMS on my phone from the identifier MASMOVIL without my request or authorization, I submitted a complaint to the AEPD for lack of response (...) and I have received a response from the entity being complained about indicating that they had obtained my data through the participation form in the draw for a trip for two people published on the website www.premium-sales.es, which is absolutely false,” presenting the necessary documentation to corroborate these statements, such as the received SMS or the response from the entity being complained about.

On the other hand, the responsible party of the website only certifies that someone registered and entered the complainant's data, but does not certify that it was the complainant who registered or that it was done with their consent.

Furthermore, the entity being complained about states, in the response made to the affected party, that, like the rest of the companies in the digital marketing sector and other sectors, it cannot guarantee with absolute certainty that the received data is correct, as sometimes registrations are received indicating false names, aliases, or some incorrectly stated data, and sometimes, registrations of minors are received indicating a wrong date of birth to prove an age of majority that they do not have, thus being able to opt for the promoted prizes. For this reason, AD735 warns users, in its privacy policy, of the need to provide accurate and truthful data, in addition to, in the case of providing data of third parties, having the express consent of these individuals to be able to enter them.

Therefore, in the present case, there were true indications of a presumed violation of the GDPR, as they were not mere suspicions given that the complainant presented documents corroborating what was indicated in the complaint.

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e).- On the intrusion of the sanctioning body in the instructive activity.

It should be noted that the sanctioning procedure is regulated as a specialty of the administrative procedure, developed by Law 39/2015, of October 1, on the Procedure

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Common Administrative Procedure of Public Administrations and by Law 40/2015, of October 1, on the Legal Regime of Public Administrations.

In the phases that concern us in the sanctioning procedure, it should be noted that the instruction of the sanctioning administrative procedure will be in the hands of the instructing body. This body will be responsible for investigating the facts that occurred through documents, opinions, and/or reports in order to issue a proposal for resolution to the body that will subsequently be responsible for resolving. On the other hand, the termination of the sanctioning administrative procedure will be the responsibility of a different body from the instructor, competent to resolve the procedure.

It may happen that the instructing body considers it appropriate to archive the proceedings, due to the concurrence of any of the circumstances listed in Article 89.1 of the LPAC, but Article 90.2 of the LPAC establishes that, if the competent body for resolution considers that the infringement or the sanction is

of greater severity than that determined in the proposal for resolution, the accused will be notified so that they can argue what they deem appropriate within a period of fifteen days.

In the case at hand, on 24/01/23, the competent body for the resolution of the sanctioning procedure notified the accused of its decision to consider that there was a violation of Article 7.1 of the GDPR, as it could not corroborate that the data of the complainant was provided by them, arguing the following: In this case, the responsible party only certifies that someone registered and entered the complainant's data, but does not certify that it was the complainant who registered.

In these cases, the accused can establish procedures to verify that the registration is carried out by the data subject, such as, for example, sending an SMS or making a confirmation call, especially when the main purpose of the responsible party's activity is to obtain data for advertising purposes, as stated in the initiation agreement: "This is because the verification of the identity of the user who is entering the data on the sweepstakes website <https://www.premium-sales.es> is not carried out with sufficient guarantees, so any person with knowledge of the name, surname, and phone number of a citizen, or even using random data, could enter this personal data on the website and these could be transferred by the accused party to other entities for marketing purposes. The accused party, in its email response to the complainant, which is included in the written allegations regarding the transfer of the complaint, expresses the unavailability of the necessary technology to certify the identity of the persons sending the data through the forms enabled on their websites. This argument, to which the accused party adheres, is unfounded as there are well-known mechanisms, such as, for example, sending a verification code via SMS, or a confirmation call, etc., that could minimize the possible unlawful processing of personal data provided through the form."

Therefore, it is not true that there is an intrusion by the sanctioning body in the instructing activity, as it is stated that actions were taken at all times based on the current legality.

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III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection:

RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the entity AD735 DATA MEDIA ADVERTISING S.L. with CIF: B87781795 against the resolution issued by the Director of the Spanish Agency for Data Protection on 07/03/23, in the sanctioning procedure: PS/00136/2022

SECOND: TO NOTIFY this resolution to AD735 DATA MEDIA ADVERTISING.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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